

(3) in the discharge of any obligations incurred or arising by reason of the purchase by the Secretary of State of any railway constructed or worked in India by any such company, or on the determination of the contract of any such company with the Secretary of State ;

(4) in the construction of irrigation works in India.

4. It shall also be lawful for the Secretary of State at any time or times to raise in the United Kingdom, as and when necessary, in the manner mentioned in section three of this Act, any sum or sums of money not exceeding in the whole five millions of pounds sterling for the general purposes of the Government of India.

Power to raise 5,000,000/ for the general purposes of the Government of India.

5. The power given to the Secretary of State by this Act to raise moneys by means of stock or other securities created by him shall be deemed to include power to create such stock or other securities to be applied directly in exchange for or discharge of any of the bonds, debentures, or other obligations mentioned in subsections (2) and (3) of section three of this Act, in such manner as may be necessary for carrying out any arrangement made for the purpose :

Power to apply securities created under this Act directly in exchange for or discharge of obligations.

Provided that, in calculating the amount of the moneys raised under this Act, the capital value of any obligations exchanged for or discharged by means of stock or other securities created under this section shall be included as if an equivalent amount of money had been raised under this Act.

6. Sections four to twelve inclusive, sections fourteen to seventeen inclusive, and section nineteen of the East India Loan Act, 1893, shall be incorporated with this Act.

Certain provisions of 56 & 57 Vict. c. 70 to apply.

7. This Act shall not prejudice or affect any power of raising or borrowing money, or of creating or issuing securities, vested in the Secretary of State at the time of passing thereof.

Saving.

CHAPTER 55.

An Act to regulate the sale of certain Poisonous Substances and to amend the Pharmacy Acts.

[21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Schedule A. to the Pharmacy Act, 1868 (which specifies the articles to be deemed poisons within the meaning of that Act), is hereby repealed, and the schedule to this Act shall be substituted therefor.

Amendment 31 & 32 Vict. c. 121 Schedule A.

(2) The schedule to this Act may be amended by adding thereto or removing therefrom any article, or by transferring an article from one part of the schedule to the other in the manner provided by section two of the Pharmacy Act, 1868, for adding to the list of articles deemed to be poisons within the meaning of that Act.

Regulation of
the use of certain
poisonous sub-
stances for
agricultural
and horticultu-
ral purposes.

2.—(1) So much of the Pharmacy Act, 1868, as makes it an offence for any person to sell or keep open shop for the sale of poisons, unless he is a duly registered pharmaceutical chemist or chemist and druggist and conforms to regulations made under section one of that Act, shall not apply in the case of poisonous substances to be used exclusively in agriculture or horticulture for the destruction of insects, fungi, or bacteria, such as sheep dips or weed killers which are poisonous by reason of their containing arsenic, tobacco, or the alkaloids of tobacco, if the person so selling or keeping open shop is duly licensed for the purpose under this section by a local authority, and conforms to any regulations as to the keeping, transporting, and selling of poisons made under this section, but nothing in this section shall exempt any person so licensed from the requirements of any other provision of the Pharmacy Act, 1868, or of the Arsenic Act, 1851, relating to poisons:

& 15 Vict.
13.

Provided that His Majesty may by Order in Council amend this provision by adding thereto or removing therefrom any poisonous substance, and, upon any such Order being made, this provision shall have effect as if the added poisonous substance were included therein and the removed poisonous substances were excluded therefrom.

(2) Before granting any licence under this section the local authority shall take into consideration whether in the neighbourhood where the applicant for the licence carries on or intends to carry on business the reasonable requirements of the public with respect to the purchase of such poisonous substances as aforesaid are satisfied.

(3) His Majesty may, by Order in Council, make regulations as to—

- (a) the granting of licences under this section; and
- (b) the duration, renewal, revocation, suspension, extent, and production of such licences; and
- (c) the keeping, inspection, and copying of registers of licences; and
- (d) the fees to be charged for licences and for inspection and copying of registers; and
- (e) the keeping, transporting, and selling of the poisonous substances to which this section applies;

and generally for the purposes of carrying this section into effect.

(4) The local authority for the purposes of this section shall, as respects the area of any municipal borough in England having a population of more than ten thousand according

the last published census for the time being, be the council of that borough, and, as respects the area of any royal, parliamentary, or police burgh in Scotland, be the town council, and, as respects any other place, be the council of the county.

(5) An Order in Council under this section shall be laid before both Houses of Parliament as soon as may be after it is made.

3.—(1) Any person who, being a duly registered pharmaceutical chemist or chemist and druggist, carries on the business of pharmaceutical chemist or chemist and druggist shall, unless in every premises where the business is carried on the business is bonâ fide conducted by himself or some other duly registered pharmaceutical chemist or chemist and druggist, as the case may be, and unless the name and certificate of qualification of the person by whom the business is so conducted in any premises is conspicuously exhibited in the premises, be guilty of an offence under section fifteen of the Pharmacy Act, 1868.

Amendment
31 & 32 Vict.
c. 131. ss. 15
and 16.

(2) The provisions of section sixteen of the Pharmacy Act, 1868, which enable the executor, administrator, or trustee of the estate of a deceased pharmaceutical chemist or chemist and druggist to continue his business so long as such business is bonâ fide conducted by a duly qualified assistant, shall be construed as enabling such executor, administrator, or trustee to carry on the business if and so long only as, in every premises where the business is carried on, the business is bonâ fide conducted by a duly registered pharmaceutical chemist or chemist and druggist, as the case may be, and the name and certificate of qualification of the person by whom the business is so conducted in any premises is conspicuously exhibited in the premises.

(3) A registered chemist or druggist may, notwithstanding anything in section fifteen of the Pharmacy Act, 1868, take, use, or exhibit the name or title of pharmacist.

(4) A body corporate, and in Scotland a firm or partnership, may carry on the business of a pharmaceutical chemist or chemist and druggist—

(a) if the business of the body corporate, firm, or partnership, so far as it relates to the keeping, retailing, and dispensing of poisons, is under the control and management of a superintendent who is a duly registered pharmaceutical chemist or chemist and druggist, whose name has been forwarded to the registrar appointed under the Pharmacy Act, 1852, to be entered by him in a register to be kept for that purpose, and who does not act at the same time in a similar capacity for any other body corporate, firm, or partnership; and

(b) if in every premises where such business as aforesaid is carried on, and is not personally conducted by the superintendent, such business is bonâ fide conducted under the direction of the superintendent by a manager

or assistant who is a duly registered pharmaceutical chemist or chemist and druggist, and whose certificate of qualification is conspicuously exhibited in the shop or other place in which he so conducts the business.

A body corporate, and in Scotland a firm or partnership, may use the description of chemist and druggist, or of chemist or druggist, or of dispensing chemist or druggist, if the foregoing requirements as to the carrying on of the business are observed, and if the superintendent is a member of the board of directors or other governing body of the body corporate, or of the firm or partnership, as the case may be.

Subject as aforesaid, section twelve of the Pharmacy Act, 1852, and sections one and fifteen of the Pharmacy Act, 1868, shall apply to a body corporate, and in Scotland to a firm or partnership, in like manner as they apply to an individual.

Extension of
powers of
Pharmaceutical
Society to
make byelaws.

4. The power of making byelaws conferred by section two of the Pharmacy Act, 1852, on the council of the Pharmaceutical Society shall be deemed to include the power of making byelaws for all or any of the following purposes (that is to say):—

- (a) Requiring persons desirous of presenting themselves for examination by the said society to produce evidence satisfactory to the council of the society that they have received a sufficient preliminary practical training in the subjects of the examination ;
- (b) Providing for the registration, upon payment of the prescribed fee, as pharmaceutical chemists or chemists and druggists under the Pharmacy Acts, 1852 and 1868, without examination, of any persons holding colonial diplomas or of qualified military dispensers or certified assistants to apothecaries under the Apothecaries Act, 1815, who produce evidence satisfactory to the council of the society that they are persons of sufficient skill and knowledge to be so registered ;
- (c) Providing for periods of time and courses of study in connexion with the qualifying examination, and dividing such examination into two parts..

Geo. 3.
194.

Restrictions on
sale of certain
poisonous sub-
stances.

5.—(1) It shall not be lawful to sell any substance to which this section applies by retail, unless the box, bottle, vessel, wrapper, or cover in which the substance is contained is distinctly labelled with the name of the substance and the word "Poisonous," and with the name and address of the seller of the substance, and unless such other regulations as may be prescribed under this section by Order in Council are complied with ; and, if any person sells any such substance otherwise than in accordance with the provisions of this section or of any Order in Council made thereunder, he shall, on conviction under the Summary Jurisdiction Acts, be liable for each offence to a fine

(2) The substances to which this section applies are sulphuric acid, nitric acid, hydrochloric acid, soluble salts of oxalic acid, and such other substances as may for the time being be prescribed by Order in Council under this section.

6.—(1) The provisions of section two and section five of this Act shall apply to Ireland, with the following modifications:—

Application
Ireland.

- (a) For the reference to the Pharmacy Act, 1868, there shall be substituted a reference to the Pharmacy Act (Ireland), 1875, and the Pharmacy Act (Ireland) (1875) Amendment Act, 1890, and the reference to regulations made under section one of the first mentioned Act shall not apply;
- (b) For references to Orders in Council by His Majesty, or to Orders in Council, there shall be substituted references to Orders in Council by the Lord Lieutenant;
- (c) The reference to a duly registered chemist and druggist shall include a reference to a registered druggist.

35 & 39 Vict.
c. 57.
53 & 54 Vict.
c. 48.

(2) Save as provided by this section, the foregoing provisions of this Act shall not apply to Ireland.

7. Upon the death of any person registered under the Pharmacy Act (Ireland) (1875) Amendment Act, 1890, as a chemist and druggist or registered druggist and actually in business at the time of his death, it shall be lawful for any executor, administrator, or trustee of his estate to continue such business if and so long only as such business is bonâ fide conducted by an assistant being a duly registered pharmaceutical chemist or licentiate apothecary, or duly registered chemist and druggist, or duly registered druggist.

Continuation
of business
after death of
chemist and
druggist or
registered
druggist in
Ireland.

8. This Act may be cited as the Poisons and Pharmacy Act, 1908, and shall come into operation on the first day of April nineteen hundred and nine.

Short title,
commence-
ment, and
extent.

SCHEDULE.

PART I.

- Arsenic, and its medicinal preparations.
- Aconite, aconitine, and their preparations.
- Alkaloids — all poisonous vegetable alkaloids not specifically named in this schedule, and their salts, and all poisonous derivatives of vegetable alkaloids.
- Atropine, and its salts, and their preparations.
- Belladonna, and all preparations or admixtures (except belladonna plaisters) containing 0.1 or more per cent. of belladonna alkaloids.
- Cantharides, and its poisonous derivatives.
- Coca, any preparation or admixture of, containing 1 or more per cent. of coca alkaloids.

Corrosive sublimate.

Cyanide of potassium, and all poisonous cyanides and their preparations.

Emetic tartar, and all preparations or admixtures containing 1 or more per cent. of emetic tartar.

Ergot of rye, and preparations of ergots.

Nux vomica, and all preparations or admixtures containing 0.2 more per cent. of strychnine.

Opium, and all preparations or admixtures containing 1 or more per cent. of morphine.

Picrotoxin.

Prussic acid, and all preparations or admixtures containing 0.1 more per cent. of prussic acid.

Savin, and its oil, and all preparations or admixtures containing savin or its oil.

PART II.

Almonds, essential oil of (unless deprived of prussic acid).

Antimonial wine.

Cantharides, tincture and all vesicating liquid preparations or admixtures of.

Carbolic acid, and liquid preparations of carbolic acid, and its homologues containing more than 3 per cent. of those substances, except preparations for use as sheep wash or for any other purpose in connection with agriculture or horticulture, contained in a close vessel distinctly labelled with the word "Poisonous," the name and address of the seller, and a notice of the special purposes for which the preparations are intended.

Chloral hydrate.

Chloroform, and all preparations or admixtures containing more than 20 per cent. of chloroform.

Coca, any preparation or admixture of, containing more than 0.1 per cent. but less than 1 per cent. of coca alkaloids.

Digitalis.

Mercuric iodide.

Mercuric sulphocyanide.

Oxalic acid.

Poppies, all preparations of, excepting red poppy petals and syrup of red poppies (*papaver rhæas*).

Precipitate, red, and all oxides of mercury.

Precipitate, white.

Strophanthus.

Sulphonal.

All preparations or admixtures which are not included in Part I. of this schedule, and contain a poison within the meaning of the Pharmacy Acts, except preparations or admixtures the exclusion of which from this schedule is indicated by the words therein relating to carbolic acid, chloroform, and coca, and except such substances

CHAPTER 56.

An Act to prevent the spread and provide for the treatment of Tuberculosis; and for other purposes connected therewith. [21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

NOTIFICATION AND DISINFECTION.

1.—(1) If any medical practitioner attending on any person, within any district to which this Part of this Act extends, becomes aware that that person is suffering in any prescribed circumstances from tuberculosis of any prescribed form, or at any prescribed stage, the medical practitioner shall within seven days after he becomes aware of the fact send to the medical officer of health a certificate in the prescribed form and containing the prescribed particulars. Notification

(2) The Local Government Board, after consulting with the President of the Royal College of Physicians in Ireland and the President of the Royal College of Surgeons in Ireland, shall from time to time by Order prescribe the forms and stages of tuberculosis to which, and the circumstances in which, this section shall apply, but no forms of tuberculosis shall be so prescribed save such as by reason of infective discharges are liable to communicate the disease to other persons.

(3) Any certificate required to be sent to a medical officer of health under this section may be sent either by delivering it to that officer, or by leaving it at his office or residence, or by sending it by post addressed to him at his office or at his residence.

(4) If any medical practitioner required by this section to send a certificate fails to send the certificate within the period specified in this section, he shall be liable on summary conviction to a penalty not exceeding forty shillings.

(5) The sanitary authority shall pay to every medical practitioner for the certificate duly sent by him in relation to a patient in their district a fee of one shilling if the case occurs in an infirmary, public hospital, or workhouse, and a fee of two shillings and sixpence if the case occurs elsewhere, but only one notification fee shall be paid by the sanitary authority in respect of the same patient.

Where the medical practitioner required by this section to send a certificate is himself the medical officer of health of the district, he shall be entitled to the fee to which he would be entitled if he were not such medical officer.